

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-03

EUROMARKET DESIGNS, INC. v.

MSC MEDITERRANEAN SHIPPING COMPANY SA, OCEAN NETWORK EXPRESS PTE.
LTD., EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982), EVERGREEN
MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA
MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN MARINE
(SINGAPORE) PTE. LTD., HMM COMPANY LIMITED, MAERSK A/S, CMA CGM S.A.,
APEX MARITIME CO, INC., CHINA UNITED TRANSPORT, INC., COSCO SHIPPING
LINES CO., LTD., AND WAN HAI LINES LTD.

**COMPLAINANT EUROMARKET DESIGNS, INC.'S OPPOSITION TO
RESPONDENT COSCO SHIPPING LINES CO., LTD.'S MOTION FOR
ENLARGEMENT OF TIME TO FILE AN ANSWER OR OTHERWISE MOVE**

Complainant Euromarket Designs, Inc. does not oppose Respondent COSCO Shipping Lines Co., Ltd.’s (“COSCO”) right to file an untimely *answer*; however, Complainant opposes COSCO’s request for an enlargement of time to “*otherwise move*.”

COSCO provides *no basis whatsoever* for its requested extension other than stating that the time taken to internally route the Complaint to the appropriate person for action within COSCO has caused a delay. COSCO’s basis for this delay—internal routing of the Complaint—does not constitute good cause under 46 C.F.R. § 502.102(a), which requires motions for enlargement of time to be filed at least seven days before the scheduled filing date. COSCO’s motion, filed after the deadline, lacks exceptional circumstances as mandated by 46 C.F.R. § 502.102(b).

As a regulated entity under the Federal Maritime Commission’s jurisdiction, COSCO must know there is a 25-day deadline to respond to complaints under 46 C.F.R. § 502.64(a)—and should have internal procedures in place to ensure timely responses to complaints. The failure of a regulated entity to maintain such procedures is not “reasonable grounds” for a failure to file a timely motion for an enlargement of time, much less the “exceptional circumstances” actually required by 46 C.F.R. § 502.102(b).

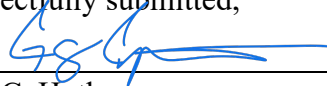
Here, although Complainant does not oppose the present motion with respect to filing an answer, granting COSCO additional time to *file motions* would reward delay and disrupt the proceedings. Other respondents have filed four other motions seeking relief such as (a) a severance of the respondents’ individual proceedings, (b) a more definite statement, (c) a stay of proceedings, (d) a request for an amended complaint and (d) motions for partial dismissal, that have been either fully briefed or at least been opposed. Allowing COSCO extra time now bring *additional motions* would unfairly prejudice the Complainant and hinder the case’s progress, especially in light of the

positions of other respondents that discovery should not begin until all pre-answer motions are resolved.

For these reasons, Complainant respectfully requests that COSCO's motion be denied to the extent it seeks an extension beyond the filing of an answer.

Dated: February 20, 2025

Respectfully submitted,



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Certificate of Service

I hereby certify that I have this day served the foregoing document upon the Respondents that have appeared thus far in this proceeding by emailing copies of that document to their counsel of record listed below:

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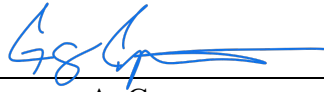
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